



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

SEP 14 2001

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 12831

EXPIRATION DATE: December 31, 2001

1. GRANTEE: The Commonwealth of Virginia, Arlington County and persons conducting operations under the supervision of government officials of the State of Virginia and Arlington County.
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the transportation in commerce of hazardous materials in commerce from the disaster areas of the Pentagon in Arlington County, Virginia to various staging areas for determination of their classification and further movement in accordance the applicable requirements of the Hazardous Materials Regulations (HMR). This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR, Parts 171 through 180
5. BASIS: This emergency exemption is based on a determination that it is necessary to avoid a risk of significant harm to persons or property in order to facilitate expedited removal of hazardous materials from disaster areas.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper shipping name -- Hazardous materials description	Hazard Class/ Division	Identi- fication Number	Packing Group
Hazardous Materials listed in the 49 CFR other than explosives or radioactive materials	Class 2, 3, 4, 5, 6, 8, 9	As Applicable	As Applicable

7. SAFETY CONTROL MEASURES: None, other than requirements imposed by State and County officials and their designees.
8. SPECIAL PROVISIONS: Operations under this exemption are limited to those persons under the direction of the State of Virginia or Arlington County .
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicles, rail freight, cargo vessel, cargo aircraft only.
10. MODAL REQUIREMENTS: None.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

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(DATE)

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